

The Place of al-Mufid in the Development of Shi'i Kalam and Fiqh



Sayyid Ali Khamene'i

**Translated by
Ali Quli Qara'i**

Al-Islam.org

Al-Tawhid Vol.10, N.2 & 3, 1993

Authors(s):

[Sayyid Ali Khamene'i](#) [1]

Publisher(s):

[Al-Tawhid Islamic Journal](#) [2]

Translator(s):

[Ali Quli Qara'i](#) [3]

Aspect of Shaykh Al-Mufid's work, Independence of the school of the Ahlul Bayt, Model for Shi'i Fiqh and Kalam.

[Get PDF](#) [4] [Get EPUB](#) [5] [Get MOBI](#) [6]

Topic Tags:

[Kalam](#) [7]

[Fiqh \(Jurisprudence\)](#) [8]

Person Tags:

[Shaykh al-Mufid](#) [9]

The Place of al-Mufid in the Development of Shi'i Kalam and Fiqh

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

وَأَلْحَمْدُ لِلَّهِ رَبِّ الْعَالَمِينَ وَأَفْضَلُ صَلَوَاتِهِ وَأَزْكَى تَحِيَّاتِهِ عَلَى سَيِّدِنَا النَّبِيِّ الْأَعْظَمِ مُحَمَّدٍ الْمُصْطَفَى وَآلِهِ الْمَيَامِينِ
سَيِّمًا بِقِيَّةِ اللَّهِ فِي الْأَرْضِينَ رَوْحِي لَهُ الْفِدَاءُ.

In the name of Allah the Beneficent, the Merciful

One thousand years ago on a tumultuous day, the grounds at the Ushnan Square in Baghdad could hardly contain the crowds of people who had gathered there on account of a sorrowful event. Thousands wept and mourned for a man whose death was a terrible loss. Tens of thousands offered funeral prayers for a sublime human being who had for fifty years, like a shining torch, illuminated a vast expanse of the Islamic world with his wisdom and knowledge, and who, at Baghdad by the side of the Tigris, had set flowing another Tigris of knowledge and learning.

The storms of bitter and bloody events and the winds of prejudice and resentment that blew through the 'Abbasid capital had failed to put out the lamp of knowledge and righteousness that drew its oil from the olive tree of the Qur'anic sciences and the teachings of the Ahl al-Bayt, may peace be upon them, and whose flame drew its brilliance from the light of human intelligence. The thorny growth of twisted judgement and guile could not stop the surging floods in their auspicious course that had carried Islamic jurisprudence and theology, reason and narration to fertile lands.

On that day when the large crowds of mourners attended his funeral and offered prayers, led by the Sayyid al-Sharif 'Ali al-Murtadha, over his body, there were others who, with hearts full of malice and devoid of wisdom and foresight, thought that everything had ended for that great man, and they foolishly proceeded to celebrate his death.

However, every thoughtful person could see clearly that the death of that august thinker could not spell an end for someone who through half a century of effort had originated numerous springs of wisdom and learning, morality and high culture, through the realms of human thought, that the will of God and the laws of history had guaranteed its fecundity and exuberance in its perpetual movement through generations, centuries and eras, right up to its merger into the endless ocean of ultimate human edification.

On that day the emaciated body of al-Mufid was consigned to the earth in his house at Darb al-Rabah, to be transferred later to the Shrine of Imam Abu Ja'far al-Jawad, may peace be upon him, and laid to rest in that abode of peace and Divine mercy. But the spirit of this warrior, indomitable and unforgettable, would linger before the gaze of time and would never be forgotten. It is still very much alive to this day and at work in the growth and fruition of the *fiqh*, *kalam* and religion of the Ahl al-Bayt, may peace be upon them.

Today, one thousand years later, this al-Shaykh al-Mufid Millennium held with your precious efforts commemorates that event and pays homage to that epitome of learning and piety whose sublimity has not been diminished by ten centuries of growth of science and culture, nor whose visage has been dimmed by the mists of time.

In fact, by paying homage to al-Mufid and publishing his written works, the scholarship of this generation pays in fact the debt of gratitude to a man whose personality and ideas have had a continued presence throughout the rich and fruitful growth of the *fiqh* and *kalam* of the school of the Ahl al-Bayt, may peace

be upon them. They have served as the cornerstone of the high edifice of Shi'i theological and legal studies of the last thousand years.

Al-Mufid's presence in the assembly of living theological ideas and scholarly pursuits does not lie in publication of his books and discussion of his views, although the publication of his writings and the discussion of his ideas and views is an expression of gratitude for the debt that all theologians and jurists that came after him owe him. Rather, this radiant presence lies in the continuity of the tradition in *fiqh* and *kalam* established by him. The holding of this millennium of gratitude and homage, firstly, makes the present generation more familiar with the visage of this great man and prepares the ground for better recognition and utilization of his legacy by this and the future generations.

Secondly, it provides researchers in the field of the history of *fiqh* and the rational sciences the opportunity to obtain new insights concerning the history of development of these sciences and the formation and growth of their formative elements during a critical period. This point acquires greater significance when we study the 4th/10th and the 5th/11th centuries as an outstanding and brilliant phase in the cultural, scientific and literary development of the Islamic world.

Thirdly, it will be conducive to the expansion of acquaintance with the basic theological teaching of Shi'ism on behalf of Muslim scholars and masses irrespective of school or sect. The importance of this becomes obvious when we observe the venomous pens and mercenary hands, of the enemy or his malicious agents, write and publish such lies and slanders concerning the beliefs of the Shi'ah, one of the major sects of Islam and today the heralds of Muslim awakening, as are comparable to those fabricated throughout the entire course of history.¹

Unfortunately, political motives and colonial designs are active in such moves, aimed to deceive the public. They are even more evident today than they were at the time when Umayyad and 'Abbasid caliphs considered malign propaganda against the Shi'ah as part of their all-out campaign against the followers of the Ahl al-Bayt, may peace be upon them, and a necessary prerequisite of their suppression. In view of this, any effort to inform the public concerning the Shi'i doctrines and teachings is also conducive to the establishment of Muslim solidarity and brotherhood. Because the enemies of Islam have always tried to misrepresent the doctrinal and juristic principles of Muslim sects to one another in order to divide Muslims.

Three Aspects of al-Mufid's Work

I thank the distinguished scholars with whose efforts this high-level scholarly gathering is being convened and I thank all of you, scholars and experts, who will enrich it with your scholarly presence. I would like to participate in your momentous collective enterprise by discussing an important point relating to the scholarly personality of al-Mufid, that glorious Shaykh, and do my share of the job in unveiling the luminous visage of this man of centuries and eras. This point concerns "the place of Mufid in the development of Shi'ism in the fields of *kalam* and *fiqh*."

I have reached these conclusions with the help of reliable evidence based on his statements, views, and writings, as well as the statements of his pupils and biographers.

That thesis, put briefly, is that al-Shaykh al-Mufid is not merely an eminent theologian and jurist amongst Imamiyyah scholars. Rather, far more than that, he is the founder and progenitor of the evolving tradition in the fields of *kalam* and *fiqh* that continues to this day in the centres of Shi'i learning. And though not entirely free of historical, geographical and ideological influences, it has preserved its basic framework and original characteristics.

The exposition of this thesis and its affirmation is important because this tradition underwent such a rapid and astonishing growth and change in the period of half a century following him that the seminal role of al-Shaykh al-Mufid has been often ignored. Here, a point to be emphasized is that the brilliant and distinguished scholarly achievements of al-Shaykh Mufid's outstanding pupil, that is, al-Sayyid al-Murtadha 'Alam al-Huda (d. 432/1040), and the high peak of this chain as represented by the era of Shaykh al-Ta'ifah Muhammad ibn al-Hasan al-Tusi (d. 464/1106), are, in fact, a continuation of the tradition whose founder was Muhammad ibn Muhammad ibn al-Nu'man al-Mufid. In order to explain this thesis, it is essential to elucidate the influential and decisive role of al-Mufid in the following three aspects:

1. establishment of the independent identity of the school of the Ahl-Bayt, may peace be upon them;
2. creation of a correct pattern and model for the development of Shi'i *fiqh*;
3. devising a method in *fiqh* and *kalam* based on logical compatibility between reason and revelation.

The high edifice built by Shi'i jurists and theologians during the last ten centuries and the incomparably rich literary tradition created by them through their works, rest on the foundations laid down by al-Shaykh al-Mufid through these three facets of his work.

Yet, before these three aspects are explained, it should be noted that al-Shaykh al-Mufid and the Shi'i centre of learning at Baghdad, each of them is a phenomenon that did not have a precedent in Shi'i history up to that time.

Undoubtedly, before that time, active Shi'i centres of learning were scattered everywhere from Syria to Transoxiana. Qumm, which succeeded the Kufah of the 2nd/8th and the 3rd/9th centuries as a major centre of *hadith*, and Ray, from which the well-known figures of al-Kulayni and Ibn Qibah al-Razi, among others, came, were only two of the numerous centres of Shi'i learning of that era.

In the east, the centres of Transoxiana, two of whose famous representatives are al-'Ayyashi from Samarqand and Abu 'Amr al-Kashshi, and the centre at Aleppo, whose Hasan ibn Ahmad al-Sabi'i al-Halabi and 'Ali ibn Khalid al-Halabi's names appear among the teachers of al-Mufid, should have been, as suggested by available evidence, important Shi'i centres of learning. A glance at the list of al-

Kashshi's teachers shows what a remarkable number of scholars and traditionists received their training in the regions of Khurasan and Transoxiana far from the original Shi'i centres.

This lends weight to the presumption that, perhaps, there were more than one centre of Shi'i learning engaged in the training of the learned in these regions. At least ten of the teachers of the above-mentioned scholars belonged to Samarqand or Kashsh (near Samarqand) and about the same number came from the cities of Bukhara, Balkh, Herat, Sarakhs, Nayshabur, Bayhaq, Fariyab and other towns of the region.²

The names of these scholars—all or most of whom were presumably Shi'ah—with *nisbahs* related to the towns of Transoxiana and Khurasan, lend support to the surmise that al-'Ayyashi—the doors of whose house according to al-Najashi, remained open in generous hospitality for learned Shi'is and scholars (*kanat marta'an lil-Shi'ah wa ahl al-'ilm*)³ and which “like a mosque, was full of people including copyists, proofreaders, *qaris* and commentators⁴ --lived at Samarqand and not Baghdad⁵ (also, it is very improbable that someone from Kufah or Baghdad would have gone seeking such a number of *shaykhs* from Khurasan and Turkistan), and this indicates the prevalence of the teachings and sciences of the Ahl al-Bayt and the presence of a very active centre of Shi'i learning in that city.

Also in Greater Syria and particularly Aleppo, in view of its large Shi'i population and the rule of the Hamdanids, who were themselves Shi'i and observed Shi'i customs and ceremonials,⁶ there undoubtedly existed a considerable centre of learning, though in view of its proximity to Iraq and the presence of its traditionists and jurists in Baghdad, and later, during the times of al-Shaykh al-Tusi, in Najaf, it cannot be reckoned amongst the major centres.

This was in brief the position of Shi'i centres of learning during the period leading up to al-Mufid's times. The centre at Baghdad was also active during that period and was engaged in the study of the Islamic sciences and teachings. But with the appearance of al-Shaykh al-Mufid on the scene and the gradual spread of his scholarly renown, Baghdad, which was the political and geographical centre of the domains of Islam, also became the main centre of Shi'i learning. It became not only the central authority to which the religious and intellectual problems of the Shi'is were referred for solution,⁷ but also the Mecca of those who aspired to acquire scholarship and learning.

Although an exhaustive list of all of al-Mufid's pupils—whose number must have been quite large—is not available, the number of those who are mentioned in the biographical sources amongst his pupils is very small, far less than what someone like al-Mufid must have trained during a period of about half a century of intellectual leadership of the Shi'ah.

But the fact that a genius such as al-Shaykh al-Tusi was drawn towards Baghdad from Tus and not towards any of the centres near his native Tus (that is, those of Khurasan and Transoxiana), and his unwillingness to settle down in Rayy or Qumm, as well as the absence of any famous and prominent figure in these centres for a period that was not after all so short—all these indicate that with the rise of

al-Mufid into prominence Baghdad assumed a place that none of the Shi'i centres of learning is known to have acquired earlier.

That is, through a dominant position in all the sciences current in the different Shi'i centres, it eclipsed the fame of all the other centres throughout the Islamic world and continued to be reckoned the crown of Shi'i centres of learning until the birth of the auspicious and virgin centre of Najaf (in 448/1056 or 449/1057).

Without doubt, the active hub and the shining core of this centre was al-Shaykh al-Mufid. With his genius, extraordinary talents, and unceasing efforts, and by utilizing the unique position of Baghdad as the political and geographic centre of the Islamic world and the rendezvous of scholars of the various schools and sects, he attained a station which was unprecedented in its inclusiveness, which made him the cynosure and the rallying point of the Shi'i centre of Baghdad during his lifetime.

A study of the works of this august Shaykh as well as evidence from other sources make it clear that al-Mufid represents a wonderful confluence of most of the diverse qualities for which some eminent Shi'i figures until that time were famed: he combined in himself the *fiqh* of the early legists such as Ibn Babawayh and Ja'far ibn Qulawayh, the *kalam* of Ibn Qibah and the Nawbakht family, the *'ilm al-rijal* of al-Kashshi and al-Barqi, the *hadith* of al-Saduq, al-Saffar and al-Kulayni, in addition to his unique formidable talents for polemic and intellectual wrestling as well as other distinguished qualities.

Of course, each of them is a torch that illuminates one of the paths relating to the teaching of the Ahl al-Bayt. But al-Mufid, like a candelabrum, combines of all their brilliance. And this is something which we do not find in any of the scholars before him. The statement of Ibn al-Nadim (d.380/990) suffices as a proof of his singular talents when he describes al-Mufid at an age of less than 44 years⁸ as the leading Shi'i scholar of *fiqh*, *kalam* and *hadith*. And al-Dhahabi who, in his *Ta'rikh al-Islam*, speaks of him in a biased and hostile tone, nonetheless cites Ibn Abi Tayy's statement about him:

"He was unrivalled in all the sciences: in the two *usul* [i.e *usul al din* and *usul al fiqh*], in *fiqh* –tradition, the science of *rijal*, the Qur'an and exegesis, grammar and poetry ... In all these sciences he was unequalled by anyone and he debated followers of any creed."⁹

Thus al-Mufid is one who combined in himself the sciences of his predecessors and it was through the means of such a versatile and multi-faceted personality that the tradition of Shi'i learning, as continued for centuries after him, came to be founded. In it *fiqh*, *kalam*, *usul*, literature, *hadith* and *rijal* were taught, studied and developed as complementaries of one another and side by side. It was this tradition whose sublime peak is represented by al-Sayyid al-Murtadha and the zenith of whose perfection was the Shaykh al-Ta'ifah Muhammad ibn al-Hasan al-Tusi.

In view of what we have said concerning the unprecedented character of al-Shaykh al-Mufid and the contemporary centre of Baghdad, al-Mufid must be considered the true progenitor of the Shi'i centres of learning of the following centuries with their characteristic constitution as places where all the Islamic

sciences based on reason and tradition were taught and learnt and whose graduates were well-versed in all or most of those sciences.

At least until the era of al-Shahid al-'Awwal—that is, the time when speciality in *fiqh* and its prerequisites became the overwhelming concern of Shi'i centres of learning—the same constitution is observable in all or most of the centres and their human products. And this was a continuation of the tradition originated by the person of al-Mufid and the academic centre created by him: that is, the centre of Baghdad until the year 413/1022.

Therefore, it is not surprising if it is claimed that such a unique and distinguished figure was the originator and pioneer of a new path along the threefold lines mentioned earlier.

Now we shall discuss the threefold aspects of al-Mufid's intellectual personality.

1. Establishment of the Independent Identity of the School of the Ahl al-Bayt

After the beginning of the Era of Occultation (*ghaybah*) and, in particular, following the seventy-four year period of the Lesser Occultation and total severance of the Shi'ah from the Hidden Inan—may our souls be ransomed for him—one of the dangers that threatened the integrity of the school of the Ahl al-Bayt was that of accretions and losses that might occur in it through conscious or unconscious errors and deviations on behalf of those associated with this school.

Another danger was that of adulteration of its truths with the doctrines or precepts of deviant creeds and counterfeit schools of jurisprudence as a result of the main conceptual boundaries of the school becoming vague and indistinct.

Whenever such a thing occurred during the era of the Imam's presence in society, or whenever such a danger arose, the sacred person of the Imam himself represented the rallying centre and the criterion against which everything was judged and evaluated. Hence, as long as the Imam, may peace be upon him, was in the people's midst, errors did not linger for long and that infallible leader would elucidate the major errors at sensitive junctures.

The Shi'ah were confident that if there occurs any deviation in the main lines of the school in any quarter, the truth would at last become manifest and those who seek it shall find it. During the times of the Imams, may peace be upon them, we come across individuals who were expressly repudiated and rejected for being guilty of some *bid'ah*, or for instituting a wrong creed, or for preaching some false doctrine—such as Muhammad ibn Miqlas, known as Abu al-Khattab, and Ibn Abi al--'Adhafir, known as al-Shalmaghani (this one pertaining to the era of the Lesser Occultation) and many others like them.

We even come across instances where in cases of dispute between two groups of sincere and genuine

followers when one of them denounced and ostracized some person or group for holding some belief, the Imam would rise to their defence by making complimentary remarks about them, approving that belief or acquitting the persons involved of the allegations of heresy.

An example of it is the Imam's approval of Yunus ibn 'Abd al-Rahman (through such remarks as: "*rahimahullah, kana 'abdan salihan,*" or "*inna Yunusa awwalu man yujibu 'Aliyyan idha da'ah*"; see *Rijal al-Kashshi*, the biographical account of Yunus ibn 'Abd al-Rahman) when ostracized by the Qummis, who narrated denunciatory traditions regarding him. Another is the case of the Banu Faddal, who were eagerly sought for by the seekers of the sciences of the Ahl al-Bayt as a reliable source of knowledge.

With the remark "*khudhu ma rawu wa dharu ma daru*" ('Take what they narrate but refrain from their interpretations'), the Imams checked their heretical (*Fathi*) belief from penetrating into the Shi'i masses. Such instances are numerous in the history of the relations of the Imams ('a) with their contemporaries and disciples.

From this viewpoint, during the period of his presence the Imam, may peace be upon him, is the ever-vigilant and watchful keeper of the creed's frontiers who safeguards the boundaries of the creed which are critical to its integrity.

However, it is a totally different situation during the period of occultation of the Imam, especially during the Greater Occultation. In this period, on the one hand, due to the daily increasing needs of the community, which now had to be met by the 'ulama' rather than the Imam ('a), and, on the other, due to the absence of a clear and decisive authority to settle what are natural disagreements between the 'Ulama' and the learned of the faith, the door is open for different ideas, views and interpretations in matters of religious doctrine and law.

Amongst the varied opinions that emerged, it was natural that elements belonging to deviant schools of thought or those pertaining to heretical Shi'i creeds (Zaydi, Isma'ili, Fathi, etc.) should enter the school of the Ahl al-Bayt, may peace be upon them, and compromise its purity and integrity, or even pose the threat of total disintegration in the long run.

Here arises one of the most important duties of the living leaders of the ummah, a duty which if carried out faithfully ensures the survival of the faith and amounts to a *jihad* critical for its continued life.

That duty is that of the definition of the Shi'i faith as a system of thought and practice and the determination of a doctrinal and legal framework derived from the precious legacy of the statements of the Imams, may peace be upon them.

The independent and clear-cut identity of the faith of the Ahl al-Bayt ('a) thus defined becomes available to its followers for understanding and utilization. This enables the 'ulama' and the thinkers to distinguish departures from the principles in *kalam* and fiqh from variance of opinion within the framework of the school.

There is no doubt that this task had remained unattended until the time of al-Mufid, may God's mercy be upon him. Ibn al-Junayd's deviant inclination towards *qiyas* in fiqh and Mu'tazilite leanings in *kalam* on behalf of the house of Nawbakht are the best evidence of this claim, and these are just two examples of consequences arising from the absence of definition of boundaries of Shi'ism in the spheres of doctrine and law.

In the field of fiqh, the neglect of rational principles of juristic deduction and the failure to practise the inference of detailed rules from general principles—which were an incontestable part of the teachings of the Imams, may peace be upon them—or, on the opposite side, tumbling into the valley of *qiyas*, are reckoned as two opposite deviant tendencies that emerged as a result of the absence of a clear-cut framework and there existing no demarcation of the conceptual boundaries of the school. In the field of *kalam*, the major manifestation of this absence of framework is the adulteration of Shi'i *kalam* by Mu'tazilite theology.

In the second case, the consequences were greater and more harmful. In this relation, the following cases are worthy of note:

(a) Major and famed theologians such as those of the Nawbakhti family fell victim to Mu'tazilite tendencies in many issues of *'ilm al-kalam* and, like the Mu'tazilah, adopted an extreme rationalism for understanding theological issues.

(b) Some major Shi'i figures have been claimed by the Mu'tazilah, and Mu'tazili writers consider them as belonging to their own fold. One of them is the famous Shi'i scholar and theologian al-Hasan ibn Musa al-Nawbakhti, the nephew and contemporary of Abu Sahl Isma'il ibn 'Ali al-Nawbakhti, the distinguished figure of the Nawbakhtis. [10](#)

(c) It came to be imagined that Shi'ism and Mu'tazilism could come together in a single person, and some eminent figures are presented as having been both Shi'i and Mu'tazili. Some even accepted such a notion concerning themselves, proclaiming it repeatedly, and coming to believe it! An example of this kind is al-Sahib ibn 'Abbad, who declares in his verses:

لو شقَّ قلبي لُرى وسطه سطران قد خطَّ بلا كاتب

العدل و التوحيد في جانبٍ و حبُّ أهل البيت في جانبٍ

Were my heart to be split open, Its inside would reveal a couplet, written by no scribe: 'Justice and *tawhid*' on one, And 'Love of the Ahl al-Bayt' on the other side. [11](#)

And elsewhere he says:

فقلت: إني شيعي و معتزلي

I declared: Indeed I am a Shi'i and a Mu'tazili!

This, despite the fact that the distinctive doctrine of Shi'ism is the Imamate of the Ahl al-Bayt, may peace be upon them, which no Mu'tazili accepts, and the distinctive dogma of *l'tizal is al-manzilah bayn al-manzilatayn* [i.e. the belief that the perpetrator of a major sin is neither a *mu'min* nor a *kafir*], which contradicts established Shi'i beliefs.

(d) Some Shi'i scholars accepted one of the five Mu'tazilite dogmas without being styled Mu'tazili by others or themselves. For instance, al-Najashi writes about Muhammad ibn Bishr al-Hamduni that "he held sound beliefs but believed in *wa'id*" [i.e. the belief that the perpetrator of grave sins would be in hell forever]¹²

(e) Shi'i *kalam* in general has been thought to have been derived from Mu'tazilite *kalam*, in particular the two doctrines of *tawhid* and *'adl*, which are claimed to have entered Shi'ite theology from *l'tizal*. This notion is repeatedly stated in the statements of non-Shi'i heresiographers and theologians from the early times to the later eras, as well as in the statements of those who have relied for their information on non-Shi'i works, as in the case of the Orientalists.

Even at the time of al-Mufid himself, the Mu'tazilite theologian and Hanafi *faqih* from Saghan, to whom al-Mufid refers as the "deluded shaykh" in his *al-Masa'il al-Saghaniyyah*, did have such a misconception about al-Mufid, concerning whom he says, "A shaykh from Baghdad who has borrowed his ideas from the Mu'tazilites has said . . ." ¹³ However, Shi'i researchers and writers—excepting those who, like the Orientalists, have relied on non-Shi'i sources—have remained secure from this error and this is on account of the greatly fruitful work of al-Mufid. ¹⁴

* * * * *

With attention to that which has been said, the importance of al-Mufid's work as someone who took upon himself the task of defining the school of the Ahl al-Bayt becomes evident. Answering the need of the times and by relying on his own scholarly powers, this august genius took up this difficult, unprecedented, and greatly momentous and critical task and truly accomplished it successfully.

This is not to claim that after al-Mufid no one did, or could not, fall victim to ignorance and error in understanding the content of Shi'ism. What is claimed is that the understanding of this school of thought and the recognition of its boundaries and limits became easier for someone trying to find them, and the faith of the Ahl al-Bayt (*'a*) with its special characteristics in the spheres of *fiqh* and *kalam* became quite accessible to researchers without the danger of being confused with other creeds.

For accomplishing this great task, al-Mufid made a number of practical moves each of which deserves to be studied independently. I will make just a passing reference to the list of these moves in the fields of

fiqh and *kalam*.

In *fiqh* he wrote *Kitab al-muqni'ah*, which contains an almost complete course in *fiqh*. In that book, he took the straight path of adopting the middle course of legal deduction comprising the employment of literal proofs (*adillah lafziyyah*) and the juristic rules (*qawa'id usuliyyah*) and abstention from *qiyas* [analogical reasoning], *istihsan* and other invalid tools (we will discuss this matter later in the subsequent section).

In addition to this, he also wrote *al-Tadhkirah bi usul al-fiqh*, and—so far as it is possible to make an assertion on the basis of written works—for the first time collected the juristic rules of legal deduction, giving *fatwa* on this basis (we will speak of this book, too, later on).

Apart from these two works, he also compiled *al-'Ilam* wherein he mentioned the cases where Shi'i legists concur on a certain *hukm* and the Sunni legists disagree [with the Shi'i position] unanimously and none amongst the legists of the Ahl al-Sunnah has given a ruling in accordance with the Shi'i consensus.

A number of the chapters of this book have been the subject of discussion and research on account of the cases of consensus reported. In relation to the definition of the lines of demarcation between Imami and Hanafi *fiqh*, *al-Masa'il al-Saghaniyyah*, written as a rejoinder to the objections of a Hanafi jurist about some issues of Shi'ite *fiqh*, is also a precious work.

One of al-Mufid's original works in this field is *al-Naqd 'ala Ibn al-Junayd*, whose title is indicative of his role as a determined sentinel determined to guard the *fiqhi* frontiers of the school of the Ahl al-Bayt, may peace be upon them. Of course, a definite judgement concerning the book's content is not possible, for it is not available to us.

But our acquaintance with his style of work, the powerful character of his arguments in religious polemics, his extensive knowledge of the religious sources, his firm ordering of the preliminaries in a discursive argument, his determined stance against Ibn al-Junayd's tendency towards *qiyas*, examples of which can be seen in *al-Masa'il al-Saghaniyyah*¹⁵—all these lead us to believe that the said work must have been scholarly and convincing in its content and without doubt it was quite influential in discontinuing the said tendency amongst Imami legists.

However, al-Mufid's more important and more extensive contribution in this regard, i.e. the establishment of Shi'ism's independent identity, relates to *kalam*. In this field, the purpose of this august shaykh of ours was to draw, with his characteristic perspicacity and precision, the lines of demarcation between Shi'i doctrines and the other creeds. This would enable him to stop the doctrinal elements of other Islamic and Shi'i creeds from encroaching into the body of Shi'i doctrines and to frustrate the attempts to attribute wrong ideas to the Shi'i creed which have nothing to do with Shi'ism.

That is the reason why during his career as a polemist he calls all the creeds of his time to debate, and

engages in debate with Ash'arites, Mu'tazilites, Murji'ites, Kharijites, anthropomorphists, the Ahl al-Hadith, the Ghulat, the Nasibites and representative of other major and minor Muslim sects. But more than any other rival sect, he was concerned to confront Mu'tazilism and its well-known offshoots and devoted himself to the refutation of Mu'tazilite views concerning various issues in several of his books and major and minor *risalahs*.

The clue to this matter is that of all the various Islamic sects it was Mu'tazilism which, due to the resemblance between some of its doctrines and certain Shi'i principles, could be a likely candidate for the suspicion that it was the source of many Shi'i beliefs, or even of the belief that it was the same as Shi'ism with some slight differences. It could lead to the misconception that Shi'i *kalam* in its entirety was derived from Mu'tazilite theology, or that the principles of Shi'i theology were the same as that of Mu'tazilism.

And as stated earlier, this misconception has resulted in certain harmful consequences. In fact, the preoccupation with Mu'tazilite doctrines in al-Mufid's works is a prominent instance of his role as a sentinel safeguarding the integrity of Shi'ism and affirming the independence and originality of its theological system.

In this context, the most important work of the Shaykh is his famous *Awa'il al-maqalat fi al-madhahib wa al-mukhtarat* written to explain the difference between Shi'ism and Mu'tazilism. As he himself explains in the book's introduction, there he has paid attention even to the differences of these two sects in some common doctrines, such as that of Justice, and their points of disagreement. [16](#)

It appears from his statements in this brief introduction that the aim of writing this book was to provide a reliable source of reference concerning matters of doctrine for those interested in the details of the fundamentals of the creed. In this book, he criticizes even some Shi'ite scholars who had earlier adopted some Mu'tazilite views and compromised the purity of the system of Shi'i theology. He mentions Banu Nawbakht in this context.

This is the same duty of guarding the frontiers and defending the conceptual system of Shi'ism of which al-Mufid, may God's mercy be upon him, was—so far as we have detailed knowledge—the first standard bearer.

Of course, the work of demarcation of doctrinal boundaries between Shi'ism and Mu'tazilism is not confined to the *Awa'il al-maqalat*. In his other books as well he devotes himself to this task, approaching the subject in various ways and often, from the viewpoint of style, in a most appealing and effective manner.

But in the *Awa'il* this characteristic is visible in its consummate form. In it we encounter cases where there is an agreement between the Shi'ah and the Mu'tazilah concerning a certain belief. In such cases, his treatment of the subject is such as to highlight the independence of the school of the Ahl al-Bayt in respect of that belief, and any doubt that the Shi'ah might have followed the Mu'tazilah in the matter is

laid to rest.

For instance, concerning the denial of the possibility of Beatific Vision he states: "I say that it is not possible to see God, glory be to Him, with the eyes. This statement is affirmed by reason, the Qur'an states it, and the traditions of the Imams of guidance belonging to the Family of Muhammad (S) are *mutawatir* in this regard. All the Imamiyyah as well as all their theologians are unanimous in this regard, except one of them who has departed from the straight path due to a doubt that appeared to him in the interpretation of the traditions. The Mu'tazilah are in agreement with the Imamiyyah in this regard and so also all the Murji'ah and many of the Khawarij and the Zaydis and groups of Ashab al-Hadith . . ." [17](#)

In holding this belief, the Shi'ah rely upon their own reliable proofs (*adillah*) derived from the Book and *mutawatir* Sunnah, in addition to its affirmation through rational proofs. Accordingly, there is no reason why they should borrow from the Mu'tazilah or some other sect. Rather, it is the Mu'tazilah who have gone along with the Imamiyyah in this matter. Such an account suggests that it is the Mu'tazilites who are indebted to the Shi'ah in this matter.

Again, in the context of "God's knowledge of things prior to their existence," he states:

I say that God, the Most Exalted, knows everything before its coming into existence. Indeed there is no temporally produced thing (*hadith*) that He does not know before its coming into being. There is nothing that can be possibly known but that He knows its reality, and, indeed, there is nothing in the earth or the heaven that is concealed from Him, *subhanah*.

This is based on rational proofs, the Scripture, and *mutawatir* traditions narrated from the family of the Messenger (S), and this is the creed of all the Imamiyyah. And we know nothing of what the Mu'tazilites report of Hisham ibn al-Hakam in opposition to it. Our opinion is that it was fabricated by them against him, and it has deceived those Shi'ites who followed them and alleged it of him . . .

With us in the doctrine we hold on the subject are all the believers in God's Unity, except al-Jahm ibn Safwan among the determinists and Hisham ibn 'Amr al-Fuwati among the Mu'tazilah. [18](#)

In this passage, the writer's tone and his recourse to the Qur'an, *mutawatir* traditions, and reason as the grounds for holding the belief, all clearly suggest the independence of Shi'i theology, although that belief is shared by the Mu'tazilah and other sects.

In some cases, the Shi'ah and the Mu'tazilah concur in regard to part of a certain well-known issue. In such instances, al-Mufid mentions the points of difference between the Shi'ah and the Mu'tazilah so that their ostensible partial agreement in regard to the issue should not mislead one in regard to its detailed aspects.

For instance, both the Shi'ah and the Mu'tazilah subscribe to the doctrine of *lutf* and *aslah*. But al-Mufid; in order to avert the possibility of error in understanding the issue and in order that the Shi'ah might steer

clear of the error of the Mu'tazilah in this problem, after explaining the doctrine of *aslah* immediately adds:

I say that the Help (*lutf*) which the proponents of the doctrine of *lutf* make incumbent upon God is so from His generosity and nobility (*al-jud wa al-karam*). It is not—as they think—justice that obliges Him, so that He would be unjust were He not to give it.¹⁹

Even in cases where there are isolated cases of some Shi'i theologians concurring with the Mu'tazilite standpoint, he insists upon mentioning them by name or through some other indication so that the viewpoint held by these exceptions to the rule is not ascribed to Shi'ism as such. For instance, in the context of *'ismah* (infallibility), after mentioning the Imami view concerning the protection of the Imams, may peace be upon them, from minor sins and even inadvertent faults (*sahw*) and forgetfulness, he says:

This is the doctrine of all the Imamis, except someone who is eccentric and sticks to the letter of traditions which have interpretations contrary to his pernicious opinion in this matter. All the Mutazilites oppose it, allowing grave sins and apostasy to occur on the part of the Imam.²⁰

It appears that here al-Mufid's reference is to al-Shaykh al-Saduq, may God's mercy be upon him.

Apparent in these examples, and throughout the *Awa'il al-maqalat*, is the distinguished role of al-Shaykh al-Mufid, in defining the doctrinal boundaries of Shi'ism, as a vigilant and unsparing sentinel fully determined to define the doctrinal and theological framework of Shi'ism in such a manner that its adherent is not mistaken for the follower of any other creed.

The same goal is also pursued in other books though in a somewhat different way. For instance, in *al-Hikayat*, the major part of which deals with the refutation of Mu'tazilite doctrines relating to different theological issues, there is a chapter entitled "*ittiham al-tashbih*" in which the narrator, who is probably al-Sayyid al-Murtadha, says: "The Mu'tazilah accused our predecessors of anthropomorphism, and even some traditionists (*ahl al-hadith*) belonging to the Imamiyyah, who have taken their word for it, claim that we have borrowed our anti-anthropomorphic stance from the Mu'tazilah."²¹ Thereupon he requests al-Shaykh al-Mufid, may God's mercy be upon him, to narrate a tradition refuting this allegation.

In reply, al-Mufid, after speaking at some length about the origin and history of this allegation and after pointing out that the number of *riwayat* handed down from the Ahl al-Bayt ('a) concerning the repudiation of *tashbih* is innumerable, cites in this context a tradition from Hadrat Abu 'Abd Allah ('a).

Then he says: "This is a statement of Abu 'Abd Allah, may peace be upon him. Now how is it possible (to say) that we have borrowed it from the Mu'tazilah, without the speaker of such a statement being lacking in piety?"²² This deep concern with repudiating the accusations of *tashbih*, *jabr* and *ru'yah* in relation to Shi'i belief is also another conspicuous example of the role of al-Shaykh al-Mufid of guarding

the faith's frontiers and establishing the independent identity of the creed of the Ahl al-Bayt ('a).

In view of al-Mufid's concern in the *Awa'il al-maqalat* and his other theological writings, such as *Tashih al-Ittiqad*, *al-Fusul al-mukhtarah*, etc., for defining Shi'i doctrine and demarcating its boundaries in relation to the other theological creeds and sects, especially Mu'tazilism, it can be said that he planned to present Shi'ism as a coherent conceptual system with well-defined and clear-cut boundaries.

There is no doubt that the distinctive mark of this conceptual system is Imamate, which puts Shi'ism apart from every other sect, and faith in which is the criterion for attributing an individual or group to the Shi'i creed.

It is true that in other doctrinal matters as well there are major differences in respect of ethos and spirit and in respect of some details and subsidiary issues between the Shi'ah and the other sects despite some nominal similarities—as in the case of *tawhid*, Justice, Divine attributes, and the like—but it is in the doctrine of Imamate that the difference between the Shi'ah and other Islamic sects is more conspicuous and explicit than in any other issue.

Accordingly, apart from the fact that he opens some of his longer works, such as the *Awa'il al-maqalat* and other books, with the discussion of Imamate, he has written numerous treatises, long and short and with different titles, on the subject of Imamate.

Here, it would be appropriate to point out that to say that the doctrine of Imamate is a distinctive characteristic of al-Mufid's system of thought is quite different from stating, as one Orientalist does, that Imamate plays a 'pivotal role' in al-Mufid's thought.

The pivot and axis in the system of Shi'i thought, and in that of all Shi'i theologians including al-Mufid and others, is the faith in the Creator and the Unity (*tawhid*) of God, the Most Exalted. Such important doctrines as that of Divine attributes, their number, meaning, and relation to the essence of ' of majestic is His Name, the doctrine of prophethood and its related issues, the doctrine of justice, the doctrine of Imamate, and the doctrines related to human obligation, resurrection and so on—all of them with their respective issues are based on the doctrine of *tawhid*.

Unfortunately, the Orientalists, and others who lack an adequate grasp of Islamic concepts, make such errors in understanding the intent of some major Shi'i figures such as al-Shaykh al-Mufid. It is hoped that gatherings and discussions such as this one would help in dispelling the misconceptions and revealing the facts.

A Western scholar who has written about the ideas of al-Shaykh al-Mufid has at one place expressed the opinion that al-Mufid lacked a coherent system of thought. Elsewhere he states that his system of thought is based on Imamate. As said, both these views are mistaken. Al-Mufid's system of thought has been clearly set forth in his numerous books and treatises, and their pivot—after the problem of *ma'rifah*, which is a logical prelude to all theological issues—is the issue of the Divine essence and attributes.

Other issues, in order of their rank, are subsidiary to it. The issue of Imamate, as said, is the essential distinctive feature of this school in contrast to the other schools and is a doctrine by which a Shi'i believer is identified. Perhaps, it may be compared to the doctrine of *al-manzilah bayn al-manzilatayn* in Mu'tazilism. Yet, amongst the fivefold doctrines of Mu'tazilism, this one is neither the foremost nor the most important nor the most fundamental doctrine as is *tawhid* or Justice.

But, at the same time, the doctrine of *al-manzilah bayn al-manzilatayn* is a characteristic feature of Mu'tazilism and the source of its origin and there is no Mu'tazilite who does not believe in it. The same is true of Imamate in the conceptual system of Shi'ism.

From that which has been said, it becomes clear that al-Shaykh al-Mufid, that great genius of Shi'i history, was the first to define and demarcate the boundaries of Shi'ism in *fiqh* and *kalam*. In *'ilm al-kalam* he formulated a coherent and well-defined system of theology from the bulk of Shi'i beliefs and saved it from being confused with other Islamic creeds as well as non-Imamite offshoots of Shi'ism.

In the field of *fiqh*, he produced a comprehensive text setting forth the methods of deduction based on principles derived from the teachings of the Ahl al-Bayt, may peace be upon them, and blocked the way to such unreliable practices as *qiyas* [analogical reasoning] and such inadequate or primitive methods as were employed by the traditionists (*ahl al-hadith*).

In other words, he established the independent identity of the school of the Ahl al-Bayt, may Peace be upon them. This is the first of the threefold aspects fundamental to understanding al-Mufid as the founder and originator of the evolving tradition of scholarship pertaining to the school of the Ahl al-Bayt, may Peace be upon them.

2. Devising a Correct Model and Pattern for Shi'i Fiqh

Fiqh, in the sense of the practice of inferring the laws of the Shari'ah from its sources, the Book and the Sunnah, has a long history in Shi'ism. Al-'Imam al-Baqir's directing Aban ibn Taghlib to give *fatwas*, with the words, "*Ijlis fi masjid al-Madinah wa if ti al-nas*,"²³ and his instructions given to 'Abd al--'A'la (*Ya'rif u hadha wa ashbahahu min kitab Alldh 'azza wa jall: Qala Allahu ta'ala: "Ma ja'ala 'alaykum fi al-dini min haraj"*) and other statements of the kind indicate that the companions of the Imams had begun to practise the deduction of *ahkam* from the Qur'an, the Sunnah of the Prophet (S) and statements of the Imams ('a) at an early stage. '*Fiqh*' in the sense of the knowledge of *ahkam* was not limited amongst the Shi'is to merely practising *taqlid* and acting in accordance with the statements of the Imams ('a).

It steadily continued to develop and expand with time, becoming more extensive and complex in respect of juristic inference. Nevertheless, there is a great distance which separates the Shi'i *fiqh* and *ifta'* as practised by the jurists from among the companions of the Imams ('a) from what it became during the eras of its maturity and fruition: that is, the activity of deducing the laws (*furū'*) from juristic principles (*usul*) and the inference of hundreds of general rules and thousands of complex and complicated juristic

precepts from the Book, the Sunnah, and reason, and the procurement of innumerable *furu'* capable of meeting all the needs of *mukallaf* persons during the *ghaybah* of the Infallible Imam, as well as the identification of God's *halal* and *haram* in all the spheres in their full details. This great distance was to be covered through a gradual progress of the juristic tradition.

There is no doubt that the legists before al-Mufid had made valuable contributions in this direction. But this great teacher, with the intellectual prowess of a genius, is considered in this field, too, a point of departure for a new phase which was as eventful as it was to become progressively prolific and profound. It appears that after several centuries of collection of the sources of *fiqh*—that is, the statements of the Infallible Ones—and giving of juristic opinion on the basis of the texts and literal meanings of traditions, the time had come in the history of *fiqh* to remould this legacy into a scientific structure and to devise a methodology for the deduction of *ahkam*.

There existed two different trends in Shi'ite *fiqh* before al-Mufid. One of them is the one whose prominent representative was 'Ali ibn Babawayh (d. 329/940). We may perhaps call it “the Qumm tradition,” and it is highly probable that Ja'far ibn Qalawayh (d. 368/978 or 369/979), al-Mufid's teacher, also belonged to it.

The practice of *fiqh* in this tradition was based on giving juristic rulings in accordance with the texts of tradition, so that every *fatwa* in the books of this group of jurists referred to a relevant tradition. Accordingly, whenever the author of such a *fatwa* possessed the prerequisites of reliability (*withaqah*) and precision (*dabt*), that *fatwa* is taken as the equivalent of a *hadith*. This is why al-Shahid al-'Awwal states in his *Dhikra*: “Shi'i scholars used to rely upon the contents of al-Shaykh Abu al-Hasan Ibn Babawayh's [*Kitab*] *al-Shara'i'* for paucity of [*hadith*] texts, on account of their good opinion of him and for the reason that his *fatwa* was like his *riwayah*.” [24](#)

Obviously, a *fiqh* of this kind is quite of an elementary character and devoid of any complicated technicalities. The *furu'* mentioned in the legal texts pertaining to this trend are confined to the *furu'* contained in the texts of traditions and are very few and limited. It was this lack which caused the opponents to criticize Shi'i *fiqh* for its poverty in regard to the number of *furu'*. This criticism in turn prompted al-Shaykh al-Tusi—may God's mercy be upon him—later on to write his *al-Mabsut* in order to silence such criticisms.

The second trend was opposed to the first one; it was based on reasoning and, presumably, inspired by Sunni *fiqh*. Its two well-known representatives are al-Hasan ibn 'Ali ibn Abi 'Aqil al-'Ummani (d. c 350/970) and Ibn al-Junayd al-'Iskafi (d. probably 381/991). Although we don't possess adequate information concerning this trend—and even about these two famous jurists—to judge with precision the level of their expertise in *ijtihad* and juristic deduction, but, on the basis of what others have reported concerning Ibn al-Junayd, it appears fairly certain that he was disposed towards *qiyas* and *ra'y* and had departed from acceptable Shi'i practice.

As to al-'Ummani, this tendency is not ascribed to him. Rather al-Najashi says of him: "I heard our Shaykh Abu 'Abd Allah praising a lot this man, may God have mercy upon him."²⁵

From al-Najashi's statement—and judging from what al-Tusi says about him in *al-Fihrist*²⁶—we may conclude that he was a jurist of the straight kind and perhaps his approach was the same as the one adopted by al-Mufid, the one on which he based his works and his research and in accordance with which trained his pupils.

However, his opinions are mostly of the eccentric kind, rarely held by jurists (*shadhdh*), and are not followed (*matruk*). And perhaps that is the reason why all that survived of his book during the periods following 'Allamah and Muhaqqiq—may God's mercy be upon them—was its name. Accordingly, it may be surmised that he could not have been among the progenitors of the subsequent juristic tradition and that his juristic approach must have suffered from some inadequacies.

Nevertheless, this pioneering scholar, about whom Bahr al-'Ulum says, "He was the first to refine *fiqh* and to employ rational judgement and analysis in the matters of *usul* and *furu'* at the outset of the Greater Occultation"²⁷, was undoubtedly instrumental in helping al-Mufid find a valid framework for the practice of *fiqh*, which was a first step, to which al-'Ummani's work must be considered a prelude.

As noted, each of these two trends in the practice of *fiqh* was deficient in certain respects. In the first, the *fatwa* consisted of the text of the *riwayah* without involving any effort made to deduce a rule from general principles and without any critical study, scrutiny and reasoning. *Ijtihad*, in its current technical sense, played no role in the practice of *fiqh*.

In the second trend, although resort was made to reasoning and critical judgement, it was not apparently fully in accord with the teachings of the Ahl al-Bayt, may peace be upon them. Either it was accompanied with *qiyas* or was of such a nature that led to eccentric results and hence could not continue in Shi'i juristic circles.

Al-Mufid's jurisprudence was free from these two faults and possessed the merits of both the trends: it relied upon such methods as were acceptable for the Imamiyyah and employed *ijtihad* in its current technical sense as well, making use of reasoning and critical inference in *fiqh*. Accordingly, he is the one who produced a scientific model that was reliable and acceptable to the Shi'ah, giving a scientific order to the traditional material and the principles of jurisprudence, and left it as an enduring legacy for Shi'i centres of legal studies. Through the course of centuries until today it has been pursued by the official tradition of *fiqh* and nurtured to the maturity and fruition that it possesses today.

In order to get briefly acquainted with the worth and significance of al-Mufid's work in *fiqh*, we will make a passing reference to three relevant topics. They are: ('a) the *Kitab al-muqni'ah*; (b) al-Mufid's short *rasa'il* relating to *fiqh*; (c) the *Kitab al-tadhkirah bi usul al-fiqh*.

(‘a) Kitab al-Muqni’ah

The *Muqni’ah* constitutes almost a complete course in *fiqh*. There existed no other earlier work in *fiqh* with this characteristic. Al-Saduq's *Muqni’*, besides being comprised of texts of traditions, like the book of 'Ali ibn Babawayh, is not as comprehensive as the *Muqni’ah* in respects of the legal topics covered. Moreover, its discussions are short and brief.

Although in his book al-Mufid does not set forth the argument underlying his fatwas—and that is why it is not easy to understand the demonstrative grounds supporting his legal opinions—but, on the basis of some reliable evidence, we can say that his *fatwas* in this book are based on a firm demonstrative basis.

And though he did not commit these arguments to writing—which would have been beneficial for the future generation had he done so—they were such as to serve as a model for his pupils and the next generation of legists who developed them on similar lines. That reliable evidence is furnished by the *Kitab al-tahdhib* of al-Shaykh al-Tusi.

As we know, the *Tahdhib* is a commentary on the *Muqni’ah* and mentions the juristic arguments underlying it. While mentioning his motives for writing the book in its introduction, al-Shaykh al-Tusi—may God's mercy be upon him—says that the same friend who had requested him to compile the work had also asked him to write a commentary on al-Mufid's *Muqni’ah*, which, he said, was comprehensive, adequate, and free from superfluous and unnecessary material.

Thereafter, al-Tusi describes his own method of demonstration which is briefly as follows:

First, recourse would be made to the literal or express meanings of Qur'anic verses or their various kinds of connotative meanings; following that recourse would be made to the established Sunnah, in the sense of a tradition that is *mutawatir* or one accompanied with supporting evidence or general consensus of the Muslim community or consensus of the Imamiyyah; following that 'prevalent' (*mashhur*) traditions relating to every issue would be cited; then an examination of the conflicting text (*dalil*) (if existent) would be undertaken and an effort made to affect a synthesis between the two conflicting *dalils* and when that is not possible the conflicting text would be rejected for the 'weakness' of its *isnad* or due to the absence of its popularity amongst Shi'i scholars.

In cases where both the texts are equal in respect of *isnad* and such other aspect (such as the immediate context [*jaht*] of its pronouncement or the lack of its popularity among legists, etc.) and none of the two can be preferred to the other, the tradition which is in agreement with the general principles and rules of the Shari'ah would be adopted and the other which is contrary to them would be abandoned; in cases where there exists no relevant tradition in a given matter, one would act in accordance with the relevant (*Shari'i*) principle and at all times textual synthesis would be preferred to preference on the basis of *sanad* and, so far as possible, the textual synthesis would be affected in accordance with a precedent recorded in tradition (*shahid al-jam' al-mansus*).

This is the method mentioned by al-Shaykh al-Tusi at the beginning of the *Tahdhib* with reference to his aim of unravelling the demonstrative basis of the *Muqni'ah*. The experts in the field know very well that it sums up the methods of juristic reasoning used throughout all the eras of Shi'i *fiqh* until today, and it reflects the general pattern of legal deduction prevalent from the times of al-Tusi—may God's mercy be upon him—up to the present.

Now, the question is whether al-Shaykh al-Mufid, as the author of the *Muqni'ah*, was himself aware of this comprehensive method of deduction that could lead a jurist to all the *fatwas* of that book, or if he formulated those *fatwas* without the knowledge of this method of inference.

In other words, is al-Shaykh al-Tusi himself the originator of this method or if he had learnt it from al-Mufid, his teacher? It appears that the answer to this question becomes clear if we examine the different aspects of the matter. It is known that al-Shaykh al-Tusi began the compilation of the *Tahdhib* during the life of al-Mufid, that is, before 413/1022, and its introduction was written at that time.

Al-Shaykh al-Tusi came to Iraq in 408/1017 when he was a youth of 23 years and began his higher studies and research under the guidance of al-Shaykh al-Mufid. He benefited from that great genius for a period of five years and the rest of his education continued under al-Sayyid al-Murtadha for a period of 23 years.

Accordingly, there remains no doubt that al-Tusi imbibed that method of legal deduction from al-Shaykh al-Mufid, and since he knew his teacher's method of deduction, he could furnish the demonstrative grounds of his teacher's work in accordance with the latter's principle of juristic reasoning.

Such a conclusion is further affirmed, or rather becomes quite definite, when we examine al-Shaykh al-Mufid's principles of juristic inference as discussed in his book on *usul al-fiqh*, which shall be discussed later on.

When we consider that book and al-Mufid's reliance on the Qur'an, on *mutawatir* Sunnah accompanied with supporting evidence, and on the *mashhur* and *mursal* traditions acted upon by Shi'i jurists, as well as his other views relating to jurisprudence, it becomes quite certain that the deductive methodology described by al-Shaykh al-Tusi in the introduction to the *Tahdhib* is the same as the one adopted and followed by his teacher and taught by the master to his pupils.

Hence we may conclude that although the *Kitab al-muqni'ah* does not contain demonstrative details, its *fatwas* are based on the same lines of deduction as became prevalent in Shi'i centres of law and jurisprudence throughout the thousand years after al-Mufid.

Moreover, this method of deduction constitutes a comprehensive and inclusive approach that is unprecedented in the two earlier trends of Shi'i juristic thought—i.e. the trend represented by Ibn Babawayh and the other by Ibn Abi 'Aqil and Ibn al-Junayd—and our honoured Shaykh was its founder and originator.

(b) Juristic Treatises

Despite their brevity, these treatises (*rasa'il*) reveal the profundity of al-Mufid's juristic wisdom. Although some of them, like *al-Mash 'ala al-rijlayn* and *Dhaba'ih ahl al-kirab* are based on an argumentation of polemical and quasi-rational character, but some others, such as *al-Mihr Jawabat ahl al-Mawsil fi al-ru'yah wa al-'adad* and *al-Masa'il al-Saghaniyyah* truly possess a firm and structured juristic style.

In the second *risalah*, which is devoted to the refutation of the belief, ascribed to al-Saduq and some other early jurists, concerning the month of Ramadan always consisting of thirty days, al-Shaykh al-Mufid, makes recourse to Qur'anic verses, advances etymological reasons, calls indubitable juristic rules as witness, offers a critical examination of the traditions that are advanced as evidence by the adversaries, scrutinizes the tradition's chain of transmission, mentions the biographical details concerning the narrators, as well as many points that help in understanding the traditions and making an inference from them, while utilizing them in the best and the most dexterous manner.

One of the interesting things he does in this treatise is his treatment of a tradition advanced by the opposite side. After citing it, he shows the weakness of its *isnad* and, while advancing a firm argument, declares its content to be unreasonable, far from the wisdom of the Imam's statements, and the product of an ignorant fabricator.

He mentions reasons that suggest the probability of discontinuity (*irsal*) in the chain of its narration, which show his profound knowledge and mastery of *hadith* (see p. 23 ff., the section relating to the *riwayah* of Ya'qub ibn Shu'ayb from al-Imam al-Sadiq, may peace be upon him).

Al-Masa'il al-Saghaniyyah, written as a rejoinder to the objections of an Hanafi jurist of Saghan concerning some ten issues of *fiqh*, is another example of the powers of juristic reasoning and the vast and profound learning of the venerable Shaykh.

Although this treatise is of a theological character—as it is intended to meet the allegations of a non-Shi'i opponent in a polemical encounter and responds by accusing him of engaging in slander and his imam of instituting *bid'ah*—but since the issues posed generally relate to law, in it al-Mufid's argumentative powers, his scientific spirit and *ijtihad* are clearly evident to any specialist in the field.

This treatise, along with *al-'Adad wa al-ru'yah*, is well indicative of al-Shaykh al-Mufid's originality and is another evidence of the fact that the juristic method observable in the approach of his disciples, as well as their pupils, is derived in its entirety from the method devised by him.

(c) Kitab al-Tadhkirah bi Usul al-Fiqh

The science of *Usul al-fiqh* constitutes the code of juristic deduction. It consists of a method for deriving practical rules from reliable sources. The formulation of the rules of jurisprudence amounts to laying down a code for the practice of *fiqh*.

Without such a code, the practice of *fiqh* lacks a well-defined framework and is prone to error, confusion, and incursion of foreign elements, as a result of which the rules deduced would lack credibility. Moreover, without such a code, subjective opinion and personal understanding and taste of the legist affects the results obtained to an inordinate extent and juristic opinion becomes subject to divergence and chaos.

It is true that the growing sophistication and maturity of *usul al-fiqh* is conducive to the soundness of juristic opinions; but that which has a critical relevance for the results of juristic effort is the creation of this discipline.

Without doubt, the real roots and sources of *usul al-fiqh* are implicit in the formulations of the Imams, may peace be upon them, which are referred to as *usul mutlaqat*, but the first work on *usul* amongst the Shi'ah (so far as we know) was written by al-Shaykh al-Mufid. It is a small book but rich in content, entitled *al-Tadhkirah bi usul al-fiqh*, which is probably an abridgement made by al-Shaykh Abu al-Fadl al-Karajaki (d. 449/1057), al-Mufid's pupil, of the master's work, which was itself a short work.

Despite its briefness, this work has considerable importance because, firstly, it is the first work on Shi'ite *usul al-fiqh*. In the introduction to his '*Uddat al-'usul*', al-Shaykh al-Tusi says: "We do not know of anyone from amongst our companions having written anything on this subject (*fi hadha al-ma'na*) except that which our teacher Abu 'Abd Allah—may God's mercy be upon him—has mentioned in his short work (*al-mukhtasar*) on *usul al-fiqh*."[28](#)

Secondly, many topics are dealt with in it in a concise manner and especially in the chapter relating to semantics? (*mabahith al-'alfaz*) there are several section headings covering important topics. Thirdly, the opinions of al-Mufid on some of the topics discussed in it are very similar to those of much later scholars of *usul*. For instance, his statement concerning *khas* and *'amm* (general and particular) resembles very much what latter-day scholars close to our own age mean by *al-'iradat al-jiddiyyah* and *al-'iradat al-'isti'maliyyah*. In this context al-Mufid says (p. 37):

وَالَّذِي يَخْصُّ اللفظ العام لا يخرج منه شيء دخل تحته، وإنما يدل على أن المتكلم به أراد به الخصوص و لم يقصد به إلى ما بنى في اللفظ له في العموم.

Fourthly, though the book was meant to be a short one,[29](#) the topics which are of greater relevance and need for the deduction of juristic rules have been given priority in the book, and other topics of theoretical interest (such as those related to the nature of knowledge and language, which the Shaykh al-Ta'ifah—may God's mercy be upon him—has discussed in detail at the beginning of the '*Uddat al-'usul*') have not been dealt by him. In view of this it is very interesting that in spite of the book's conciseness, some topics which are of frequent use and reference in legal inference have not been neglected but discussed in an appropriate manner.

Some of these topics are: the applicability of the concepts of *'umum* and *itlaq* only to verbal Sunnah (*al-sunnat al-qawliyyah*), not to behavioural Sunnah (*al-sunnat al-fi'liyyah*);³⁰ that a command (*amr*) subsequent to a prohibition does not signify anything more than permissibility (*ibdhah*);³¹ that when an exception is made subsequent to several commands, in the absence of an indication the exception applies to all those instances.³²

From that which has been said it becomes clear that al-Shaykh al-Mufid, through his book on *usul al-fiqh* prepared the necessary ground for the development of a scientific model for juristic inference. For him *'ilm al-'usul* is not a collection of quasi-theological notions, but, as mentioned expressly by his pupil in *'Uddat al-'usul*, it is “the basis on which the laws of the Shari'ah are based.

The knowledge of the Shari'ah does not become perfect without making this basis strong, and one who fails to acquire a firm knowledge of jurisprudence is only a narrator.” That is, such a person is an imitator, not a true scholar.³³

3. Devising a Method in Fiqh and Kalam Based on a Synthesis Between Reason and Revelation

This is the third aspect of al-Shaykh al-Mufid's work as the founder and progenitor of the present Shi'i tradition of learning. Here, too, he paved a new path, midway between the unchecked rationalism of the Mu'tazilah and their Shi'i followers, such as the Nawbakhtis, and the traditionalism of al-Shaykh al-Saduq.

During the hay day of Mu'tazilism, that is, at the end of the first phase of the 'Abbasid caliphate (a phase that concluded about the middle of the 3rd/9th century), the Mu'tazilah were strongly influenced by the influx of alien philosophical ideas (Greek, Pahlavi, Indian, etc.) into the Islamic world and translation of works related to those traditions.

At that time, both the influx of alien thought as well as this tendency of the Mu'tazilah received enthusiastic patronage of the 'Abbasid caliphs, especially al-Ma'mun. The movement of the Ahl al-Hadith amongst the Sunnis, and such traditionists as al-Saduq, may God's mercy be upon him, amongst the Shi'ah, who sought to understand certain theological and doctrinal issues through *hadith*, represented a reaction to this extreme rationalism of the Mu'tazilah.

The great contribution of al-Mufid was to drive home the point that reason is incapable of independently understanding all the issues of theology. For instance, he points out, it is only with the help of revelation that reason can acquire the knowledge of such Divine attributes as Will, Hearing, Sight and so on. To enter this domain of knowledge about God, the Exalted and the Glorious, with reason as one's sole guide is to invite perplexity and perdition.

In fact, this is a restatement of the traditions that prohibit man from trying to fathom the mystery of

Godhead. Al-Mufid does not expel reason from its own realm (which is not the sphere of revelation and tradition) to which belong the substantiation of such issues as the necessity of a Creator, the proofs of God's existence, Divine Unity (*tawhid*), and the need of prophethood. Rather, his aim is to confine reason within the limits assigned to it by its Creator so that it may not go astray.

At one point in the *Awa'il al-maqalat*, he writes: "The ascription of all these attributes [that is, His being the Hearer, the Seer, and the Knower] to the Eternal One, Glory be to Him is on the basis of revelation, not rational grounds or analogy."³⁴

At another place he says: "Verily, the Qur'an (*kalam Allah ta'ala*) is temporally produced (*muhdath*) and there are traditions from the Household of Muhammad—may Allah bless him and his Household—in support of this."³⁵ Elsewhere he writes: "That God, the Exalted, is Willing I say because of revelation, following and defferring to what is said in the Qur'an. I do not derive it from reason."³⁶

Yet at another place he declares: "All the Imamis concur that reason stands in need of revelation for its knowledge and conclusions and that it is inseparable from the revelation apprehended by a person in full possession of his senses (reading *al-'aqil*, instead of *al-ghafil*) in a rationally valid manner (*'ala kayfiyyat al-'istidlal*) and the Mu'tazilites concur in holding the contrary, with the claim that reason can act alone without the help of revelation and instruction "³⁷

There are many such statements of an explicit character in al-Mufid's writings. Nevertheless, he accepts the authority of a tradition only when there are no rational grounds for considering it impossible. Accordingly, in the context of the miracles of the Imams (*'a*) he says, "They belong to the category of possible things that are neither necessary on rational grounds nor impossible analogously."³⁸ He reiterates similar statements in other places.³⁹

However, in the *Tashih i'tiqad al-'Imamiyyah*, which is a gloss on al-Shaykh al-Saduq's *Risalat al-I'tiqadat*, after rejecting traditions that contradict with the Qur'an, his view is stated more explicitly than anywhere else. There, he says: "That is why when we come across a tradition conflicting with rational principles (*ahkam al-'uqul*) we reject it because reason judges it to be invalid."⁴⁰ In this statement, in addition to rejecting such traditions as contrary to reason, he makes reason itself the criterion for this judgement and thus puts a dual emphasis on the authority of reason.

Faith in reasoning and rational argument in the thought of al-Shaykh al-Mufid is so much that in a passage of the *Awa'il*, under the heading "On salutary pain without compensation," after mentioning his own singular view which is shared neither by the partisans of Justice (i.e. the Mu'tazilites) nor the Murji'ites, he declares with a rare sense of personal self-confidence: "I have made here a synthesis of principles which only I hold, without any of the other partisans of Justice and *irja'* agreeing with me. Its truth is clear to me, however, from reasoning (*nazar*).

Those who are opposed have not made me feel lonely, since I have good arguments (*hujjah*), and there is no loneliness where truth is concerned, and all praise belongs to God!"⁴¹ In view of the fact that in his

discussion concerning pain and the discussion pertaining to the doctrine of *lutf* (Divine help) he generally relies on reason rather than revelation, one may be sure that by '*hujjah*' in the above passage he means arguments based on reason rather than revelation.

The presence of the factor of revelation in the theological thought of al-Shaykh al-Mufid enabled him to resolve many of the difficult problems, whose solution is a very lengthy process, with comparable ease with the help of the sayings of the Imams, may peace be upon them, and saved subsequent Shi'i theological thought from deviance and confusion.

A relevant example in this regard is the issue of the attributes of God. The Mu'tazilah had to go a long way from the outright negation of the attributes in the statements of Wasil ibn 'Ata' and the theory of *niyabah* concerning the relation between the Divine essence and attributes, to the concept *tawhid* in the sense of not conceiving the attributes as something additional to the essence but as identical with the essence in the Divine Being.

The treatment of the same issue in al-Mufid's statement is based on tradition (*sam'*), such as the contents of the *Nahj al-bahaghah* and other similar traditions transmitted from the Imams, may peace be upon them.

It can even be inferred from these traditions that these problems were posed amongst the Shi'is already during the times of the Imams ('a), and their followers benefited from the perpetual source of knowledge represented by the Ahl al-Bayt, may peace be upon them (See *al-Kafi*, vol. I, p. 107, "*bab sifat al-dhat*" and the various parts of al-Saduq's *al-Tawhid* and the sermons of the *Nahj al-balaghah*).

Another point worthy of notice is al-Mufid's recourse to rational argumentation by the side of argument based on *sam'* (in his short theological treatises such as *al-Nukat fi muqaddimdt al-'usul*) even in relation to the topic of Divine attributes, whereas in the *Awa'il al-maqalat* he considers inference from *sam'* as the sole source of knowledge in such matters. The following are two examples from *al-Nukat*:

((...فإن قال: ما الدليل على أنه قادر؟ فقل: تعلق الأفعال به مع تعذرها في البدائه على العاجز))

((ما الذي يدلُّ على أنه عالم؟ فقل: أفعاله من الاتقان و التظافر على الاتساق، و تعذر ما كان بهذه الصفه في البدائه))
((على الجاهل))

Likewise he goes on to offer rational arguments concerning the attributes of Hearing, Sight, Wisdom and so on⁴². This cannot be regarded as a departure from the view advanced in the *Awa'il al-maqalat*. We said earlier that the short treatises written in the question and answer format were most likely compiled as didactical guides for Shi'i initiates living in far-off regions and engaged in learning the art of polemical debate and who did not have immediate access to a teacher like al-Mufid. The Shaykh seems to have

preferred the rational approach for its wider utility which made those treatises useful for confronting any kind of adversary.

This discussion makes clear that the synthesis effected by al-Mufid in his theological method between rational argument and argument from revelatory sources was an outstanding and original contribution of that great master.

I hope that this scientific and scholarly meeting will study these important topics as well as numerous other aspects of the brilliant intellectual life of the venerable al-Shaykh al-Mufid.

At the conclusion of this paper, it would be good to remember that this sublime genius carried out his long intellectual struggle—in the course of which he laid the foundations of the edifice of *fiqh* and inaugurated a new middle path in *kalam*—under difficult social conditions.

Although the Buwayhid rule in Baghdad had created an atmosphere conducive to free scholarly debates, it could not solve the problem created by the fanaticism of Hanbali jurists and the harassment of Shi'is in general and al-Mufid in particular by the 'Abbasid establishment. The persecution of the Shi'is of Karkh in Baghdad and the great hardships inflicted upon them and their noble leaders, are facts to which history bears manifest testimony.

It appears that besides the three instances of al-Mufid's exile recorded in the works of history, he faced difficult circumstances for two years in the period from 405–407/1014–1016, during which the exact character of his travails is not clear.

This question arises because there is no mention of al-Shaykh al-Mufid in the accounts relating to the death, in the year 406/1016, of al-Sayyid al-Radi, al-Mufid's beloved pupil, which describe his funeral and other details, as recorded in the books. Although one would expect the name of al-Mufid to come up there several times, one does not find a single reference to him.

Another thing that makes one curious is that in the *Amali* of al-Mufid, whose contents indicate that he used to hold several sessions (*majalis*) every year around the month of Ramadan at his house, or in his mosque, at Darb al-Rabah and that these sessions continued from 404/1013 to 411/1020, we do not find any majlis pertaining to the years 405/1014 and 406/1016 in that record of his dictation sessions.

Another thing is that during the events of the Muharram of 406/1016, when there were big anti-Shi'i riots—something that had become a recurring feature of their life in Baghdad—the person who was selected as the representative and leader of the Shi'is for talks with the Baghdad regime was al-Sayyid al-Murtadha, not al-Shaykh al-Mufid, although the latter was at the time the undisputed leader of the Shi'is and in the years before that al-Sayyid al-Murtadha was considered his humble and obedient disciple.

These indications raise in the mind the probability that al-Mufid was faced with some kind of trouble that

resulted in his absence from Baghdad during these two years. The matter needs to be investigated. However, that which is certain is that life in Baghdad was very difficult for the Shi'ah and their leaders for the most part of the hundred and thirteen years of Buwayhid rule over Iraq and Baghdad, accompanied as they were by persecution, sectarian conflict, and bloodshed. These indications raise in the mind the probability that al-Mufid was faced with some kind of trouble that resulted in his absence from Baghdad during these two years. The matter needs to be investigated. However, that which is certain is that life in Baghdad was very difficult for the Shi'ah and their leaders for the most part of the hundred and thirteen years of Buwayhid rule over Iraq and Baghdad, accompanied as they were by persecution, sectarian conflict, and bloodshed. These indications raise in the mind the probability that al-Mufid was faced with some kind of trouble that resulted in his absence from Baghdad during these two years. The matter needs to be investigated. However, that which is certain is that life in Baghdad was very difficult for the Shi'ah and their leaders for the most part of the hundred and thirteen years of Buwayhid rule over Iraq and Baghdad, accompanied as they were by persecution, sectarian conflict, and bloodshed.

It was in the midst of such great hardships and despite the heavy responsibilities of the leadership of the Shi'is of Iraq, or rather of the whole Islamic world, that he made such a great contribution to Shi'i teachings.

As a last point, I shall insist that the scholars and thinkers present at this academic gathering make all the efforts they can to utilize this scholarly meeting as a means of furthering intellectual concord and real solidarity between Islamic sects.

The character of al-Mufid's confrontation with the religious opponents of his era was certainly influenced by the bitter social events and hardships caused by blind prejudice with which the oppressed Shi'is of those days were faced. That kind of conduct cannot today serve as a model for mutual relations between Islamic sects, even in the area of *kalam*.

Today all the Islamic sects should draw the lesson of friendship and peaceful coexistence from those painful scenes of history. At a time when the very principles of Islam—for whose revival the Mufids of every sect have taken great pains—are threatened by the enemies, they should devote their total efforts to the promotion of solidarity, concord and cooperation between all the sects and their thinkers. This is the great aspiration of the Revolution and the lasting counsel of our late Imam, may God sanctify his pure soul.

Once again I beseech God, the Exalted, to grant you success and pray to Him to bless this gathering of yours with bright results and lasting achievements. *Was-salimu 'alaykum wa rahmatullahi wa barakatuh*.

'Ali al-Husayni al-Khamenei

Farvardeen, 1372.

Shawwal, 1413.

1. In this case the bias, or ignorance, that has gone into such efforts in the past is such that it astounds a Shi'i researcher. For instance, al-Sadaq wrote his *Kitab al-tawhid*, a major work consisting of 67 chapters and 583 traditions related to theology, because, as he himself states in the book's introduction, the opponents accused the Shi'ah of believing in *jabr* (determinism) and *tashbih* (anthropomorphism), whereas “*amr bayn al-'amrayn*” and “*la tashbih wa la ta'til*” are amongst the most well-known principles of Shi'i doctrine. The allegations of al-Shahristani in his *al-Milal wa al-nihal*, as well as those that appear in the works written before and after him, are prominent examples of the unfair campaign waged against the followers of the school of the Ahl al-Bayt, may peace be upon them.

In our own time, irresponsible writers—who do not consider themselves answerable for whatever they may write concerning the Shi'ah and who do not care how dear is the price that they pay in terms of loss of piety and harm to truth—in order to please their masters, who care for nothing except dollars and pomp, write so profusely and recklessly that Ahmad Amin, the anti-Shi'i Egyptian writer of the last generation, who recognized no bounds in making absurd misrepresentations and propagating lies must now be assigned a second or third place. It should be noted, however, that there is nothing wrong with books and works of scholarly integrity written to affirm or refute any creed in an argumentative manner. Rather, such writings are essential for the intellectual development of Muslims and helpful in enabling them to choose the best views. What we are speaking about here is deception, fabrication, defamation and false accusation.

2. Jibra'il ibn Ahmad al-Fariyabi (from Fariyab, a town between Balkh and Marw al-Rud), who according to al-Shaykh al-Tusi had settled at Kashsh; Ibrahim ibn Nasir al-Kashshi (Kashsh, a village near Samarqand); Khalaf ibn Hammad al-Kashshi; Khalaf ibn Muhammad, known al-Mannan, al-Kashshi; 'Uthman ibn Hamid al-Kashshi; Muhammad ibn al-Hasan al-Kashshi; Muhammad ibn Sa'd ibn Mazid al-Kashshi, Ibrahim ibn 'Ali al-Kufi al-Samarqandi (the order of these two nisbahs suggests that this Kufi shaykh had migrated to Samarqand); Ibrahim al-Warraqa al-Samarqandi; Ja'far ibn Ahmad ibn Ayyub al-Samarqandi; Muhammad ibn Mas'ud al-Ayyashi al-Samarqandi; Adam ibn Muhammad al-Qalanisi al-Balkhi; Ahmad ibn 'Ali ibn Kulthum al-Sarakhsi; Ahmad ibn Ya'qib al-Bayhaqi; 'Ali ibn Muhammad ibn Qutaybah al-Nayshaburi; Muhiammad ibn Abi 'Awf al-Bukhari; Muhammad ibn al-Husayn al-Harawi; Muhammad ibn Rashid al-Harawi; Nasr ibn al-Sabbah al-Balkhi, and others.

3. al-Najashi, *Rijal*, the biographical entry on al-Kashshi, p. 372.

4. *Ibid.*, the entry on al-Ayyashi, p. 351.

5. It is further confirmed by the fact that 'Ali ibn Muhamntad al-Qazwini was the first to bring al-Ayyashi's books to Baghdad in 356/966–7. See al-Najashi, p. 267.

6. Rumi in his *Mathnawi* narrates the story of a poet who was in Aleppo on the day of 'Ashura'. On seeing all people dressed in black and the bazaar closed, he thought that the amir or some prince must have died. When he questioned the town's people they told him, “Obviously, you are a stranger here....”

7. Noteworthy in this regard are al-Mufid's epistles (*rasa'il*) written in reply to queries that came from various Muslim towns, as well as their great variety. In some of them al-Mufid not only seeks to resolve the questioner's problem but also rises to combat a theological opponent, as if he considers it his duty to defend from his seat at Baghdad the Shi'i creed and believers subject to the assaults of dangerous enemies. In this relation see al-Masa'il al-Saghaniyyah and its strongly aggressive and confident tone meant to heighten the morale of a beleaguered Shi'i from the Khurasan of those days whose creedal sanctum had been violated and subjected to assault. This suggests that the treatises of the “*in qila, faqul*” (“if [the opponents] say to you... then tell them”) kind, such as al-Nukat fi muqaddimat al-'usul and al-Nukat al-'itiqadiyyah, were mostly written for Shi'is living in far-off places who were perpetually under the pressure of deliberately framed objections of a religious character and who sought guidance and help for firm theological rejoinders.

8. Because, in the year of his death al-Mufid (d. 336/947) was 44 and it is not known how many years earlier he had written the entry on al-Mufid in his list.

9. The source of this statement is al-Dhahabis *Ta'rikh al-Islam wa wafayat al-mashahir wa al-'alam*, which has not yet been published. Apparently, this statement has been cited from a forthcoming edition of it.

10. Jalal Huma'i, *Tarikh-e'ulum-e-Islami*, p. 51.

11. 'Abbas al-Qummi, *al-Kuna wa al-'alqab*, vol. ii, p. 404.

12. *Rijal*, p. 381.

- [13.](#) See al-Masa'il al-Saghaniyyah, p. 41.
- [14.](#) What is surprising is that even in our own time one Orientalist, in his work on al-Mufid's theological ideas, presents him as a follower of the Baghdad Mu'tazilite school.
- [15.](#) In al-Masa'il al-Saghaniyyah, al-Mufid attacks Ibn al-Junayd and refers to his statements as "hadhayan" (delirious) and his views as "ghayr sadid" (unsound). See al-Masa'il al-Saghaniyyah, p. 62.
- [16.](#) Following is the text in Awa'il al-maqalat, p. 40.
- و فصل ما بين العدلية من الشيعة و من ذهب الى العدل في المعتزلة و الفرق ما بينهم من بعد و ما بين الامامية فيما اتفقوا عليه من خلافهم فيه من الاصول.
- [17.](#) Awa'il al-Maqalat, pp. 62–63.
- [18.](#) pp. 60–61.
- [19.](#) Awa'il, p. 65.
- [20.](#) Awa'il, p. 74.
- [21.](#) Al-Najashi, Rijal, p. 10.
- [22.](#) al-Hikayat, pp. 79–81.
- [23.](#) Al-Hurr al-'Amili, Wasa'il al-Shi'ah, vol. i, p. 327.
- [24.](#) Fatawa al-'alamayn, p. 5.
- [25.](#) Al-Najashi, op. cit., p. 48.
- [26.](#) The text in al-Najashi (p. 48) reads:
- كتاب مشهور في الطائفة و قيل ما ورد الحاج من خراسان الا طلب و اشترى منه نسخ.
- The text in al-Tusi's Fihrist (p. 368, and with a slight difference of wording on page 96) reads:
- له كتاب آخر منها كتاب التمسك في الفقه، كبير حسن
- [27.](#) Fatawa al-'alamayn, p. 13.
- [28.](#) 'Uddat al-'usul, p.5.
- [29.](#) Note the text cited from the 'Uddah:
- في المختصر الذي له أصول الفقه ...
- [30.](#) Al-Tadhkirah, p. 38:
- و ليس يصح في النظر دعوى العموم بذكر الفعل، و إنما يصح ذلك في الكلام المبني و الصور منه المخصوصه، فمن تعلق بعموم الفعل فقد خالف والعقول...
- [31.](#) Ibid., p. 30:
- إذا ورد لفظ الامر معاقباً لذكر الحظر أفاد الاباحة دون الايجاب
- [32.](#) Ibid., p. 41:
- ...و الاستثناء اذا أعقب جعلاً فهو راجع إلى جميعاً بآلاً
- [33.](#) 'Uddat al-'usul. n. 8
- [34.](#) Awa'il al-maqalat, p. 59.
- [35.](#) Ibid., p. 57
- [36.](#) Ibid., p. 58
- [37.](#) Ibid., p. 57
- [38.](#) Ibid., p. 79
- [39.](#) Ibid., "al-qawl fi sima' al-'alimma (a) kalam al-mala'ikat al-kiram, etc., p. 80.
- [40.](#) Tashih al-'i tiqad, p. 149.
- [41.](#) Awa'il al-maqalat, p. 129.
- [42.](#) al-Nukat fi muqaddimdt al-'usul, pp. 33–34.

Source URL:

<https://www.al-islam.org/al-tawhid/vol10-n2-3-1993/place-al-mufid-development-shii-kalam-and-fiqh>

-sayyid-ali-khamenei

Links

- [1] <https://www.al-islam.org/person/ayatullah-sayyid-ali-khamenei>
- [2] <https://www.al-islam.org/organization/al-tawhid-islamic-journal>
- [3] <https://www.al-islam.org/person/ali-quli-qarai>
- [4] <https://www.al-islam.org/printpdf/book/export/html/23234>
- [5] <https://www.al-islam.org/printepub/book/export/html/23234>
- [6] <https://www.al-islam.org/printmobi/book/export/html/23234>
- [7] <https://www.al-islam.org/tags/kalam>
- [8] <https://www.al-islam.org/tags/fiqh>
- [9] <https://www.al-islam.org/person/shaykh-al-mufid>